

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

1. Complaint No.CC006000000057433

Viloo Keki Italia

.... Complainant

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040

Along with

2. Complaint No.CC006000000057844

Manav Aggarwal

.... Complainants

Shirin Aggarwal

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040

Along with

3. Complaint No.CC006000000057804

Manav Aggarwal

.... Complainants

Shirin Aggarwal

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040

Along with

4. Complaint No.CC006000000057760

Shirin Agarwal

.... Complainants

Shagun Udhas

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040



Along with
5. Complaint No.CC006000000057767
Manav Aggarwal
Shirin Aggarwal
.... Complainants
Versus
M/s. Sahyog Homes Ltd
.... Respondent
Project Registration No. P51800003040

Along with
6. Complaint No.CC006000000057761
Eshan Aggarwal
.... Complainant
Versus
M/s. Sahyog Homes Ltd
.... Respondent
Project Registration No. P51800003040

Along with
7. Complaint No.CC006000000057849
Shashi Udhas
Pradeep Udhas
.... Complainants
Versus
M/s. Sahyog Homes Ltd
.... Respondent
Project Registration No. P51800003040

Along with
8. Complaint No.CC006000000057843
Pradeep Udhas
Shashi Udhas
.... Complainants
Versus
M/s. Sahyog Homes Ltd
.... Respondent
Project Registration No. P51800003040

Along with
9. Complaint No.CC006000000057848
Shashi Udhas
Pradeep Udhas
.... Complainants
Versus
M/s. Sahyog Homes Ltd
.... Respondent
Project Registration No. P51800003040

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Along with

10. Complaint No.CC006000000058137

Husein K Kuwajerwala
Tina Kumar Darire

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

11. Complaint No.CC006000000058139

Tina Kumar Darire
Husein K Kuwajerwala

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

12. Complaint No.CC006000000068141

Sonam Kapoor
Sunita Kapoor

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

13. Complaint No.CC006000000068143

Rhea Kapoor
Sunita Kapoor

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

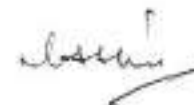
14. Complaint No.CC006000000058131

Qaeed Kuwajerwala
Versus

.... Complainants

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent



Along with
15. Complaint No.CC006000000058134

Hina Karim Mantri
Karimi Nuruddin Mantri

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with
16. Complaint No.CC006000000058140

Karimi Nuruddin Mantri
Hina karim Mantri

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with
17. Complaint No.CC006000000068144

Nafisa Gulamabbas Kapasi
Gulamabbas Kapasi

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with
18. Complaint No.CC006000000058136

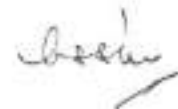
Nazira Hasnain Lala
Hasnain Akbar Ali Lala

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent



Along with
19. Complaint No.CC006000000058142

Zeenat Z Mantri
Zaheed N mantra

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

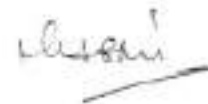
.... Respondent

Coram: Dr. Vijay Satbir Singh, Hon'ble Member – 1/MahaRERA
Adv. Jitendra Ahuja a/w Adv. Harshad Bhadbhade a/w Adv. Sonam Singh
a/w. Adv. Anwar Landge a/w. Adv. Sanjeev Singh appeared for their
respective complainants by filing Vakalthnama.

Adv. Nilesh Gala a/w Adv. Rahul Shelar appeared for the respondent.

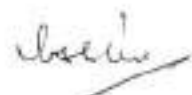
ORDER
(5th December, 2019)

1. The above named complainants have filed these complaints with MahaRERA, seeking directions to the respondent, to execute registered agreements for sale with the complainants in accordance with the allotment letters issued in favour of the complainants, under the provisions of section-13 of the Real Estate (Regulation & Development) Act, 2016 (hereinafter referred to as "RERA"), and also to pay interest and compensation as per section-18 of the RERA, in respect of bookings of their respective flats in the respondent's project known as "**Verona**" bearing MahaRERA registration No. P51800003040 situated at Oshiwara, Jogeshwari(West), Mumbai-400102.
2. These complaints were clubbed together and kept for hearing on several occasions and the same were heard finally on 16-10-2019, when the concerned parties appeared through their respective advocates and made their submissions. During the hearings, both the parties have sought time to make



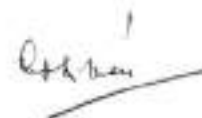
their written submissions and in compliance of principles of natural justice, the MahaRERA granted adequate time to both the parties to submit the same in support of their claims. Further, the respondent has filed an application on record for deciding the preliminary issue of maintainability of these complaints. Accordingly, a detailed hearing was conducted on the said applications at length. Both the parties have also made their submissions in writing.

3. It is the case of the complainants that they have paid more than 10% amount out of total consideration amount in the year 2007 to the respondent M/s. Sahyog Homes Ltd. and have booked their respective flats in the proposed building known as “BBJ Roma” on plot of land bearing CTS No. 1/c(pt), 397, 397 to 12, 398, 398/1,399(pt), 400(pt), 405(pt),406, 407(pt), 408(pt), 410C(pt), 218(pt), 219(pt), 220 & 376, 377, 379, 380 of Village Oshiwara, Taluka Andheri. However, without obtaining the consent of the complainants the respondent M/s. Sahyog Homes Ltd has granted development right in respect of said property to another promoter Sankalp Siddhi Developers Private Limited. The latter changed the name of the project from “BBJ Roma” to “BBJ Verona” and started construction of the said building. The complainants have persuaded the matter with the respondent M/s. Sahyog Homes Ltd for execution of registered agreements for sale with them in accordance with the allotment letters issued by the M/s. Sahyog Homes Ltd. However, no action has been taken on their requests so far.
4. The respondent M/s. Sahyog Homes Ltd has resisted the claims of the complainants by raising various defenses in the reply as well as an application for maintainability of these complaints. The respondent has stated that the complainants are the allottees of ‘BBJ Roma’ which is not registered with MahaRERA. However, the project known as Verona is registered with

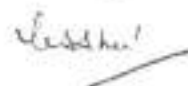


MahaRERA. The respondent further stated that, for the project known as BBJ Roma, no sanctioned plan/commencement certificate has been obtained from the concerned authority. Further the money paid by the complainants have been utilised for rehabilitation of about 1300 slum dwellers under the Slum Rehabilitation Scheme and still 400 slum dwellers are there to be rehabilitated. The respondent further stated that in the project "Verona" there are around 1500 allottees with whom the registered agreements for sale have already been executed. Therefore, the complainants cannot be accommodated in the said project. The respondent, therefore, prayed MahaRERA to decide the application filed for deciding maintainability of these complaints.

5. During the hearing, to verify the layout & plan approved by the planning authority, the officers from SRA were called for a meeting on 3-12-2019. Accordingly, the officers from SRA have attended the meeting and explained the sanctioned layout plan of the said Slum Rehabilitation Scheme undertaken by the respondent.
6. The MahaRERA has examined the rival submissions made by both the parties as well as the records. The facts of these cases, particularly the allotment letters issued in favour of the complainants show that they have paid the money for booking of their flats in the project known as "BBJ Roma", which got stalled and the respondent/promoter could not commence the work of the project. The respondent has undertaken the said project under Slum Rehabilitation Scheme under Regulation 33(10) of DCR-1991 read with Appendix-IV. The SRA being planning authority/ competent authority has sanctioned the layout plan in which some projects have been shown and the sale buildings have been named as "S-2, S-4", etc. However it is not possible to find out the names of the buildings.

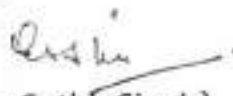


7. The record also shows that at present the respondent has undertaken the projects in the name of Verona, Oshi and Lamour in which the complainants prima facie do not seem to be the allottees. Although they paid the money for "BBJ Roma" the same has not been started in the approved layout of SRA. The complaints filed in the project "Verona" do not appear to be maintainable, for want of any cogent documentary proofs such as, bookings or allotment letters pertaining to the allotments of flats in the project known as "Verona". In its submission before MahaRERA, the respondent also offered to pay the complainants interest on the money which they have paid along with the interest as prescribed by RERA.
8. It was also noticed by the MahaRERA that a complaint was filed regarding the issue of non-registration of the project known as "BBJ Roma" in the year 2017 with MahaRERA under "Source Information". During scrutiny of the said matter, the records show that the respondent had submitted that it could not register the said project "BBJ Roma" because of the large numbers of slum dwellers occupying the said plot of land. Therefore, it could not get necessary approvals from the planning authority, i.e. SRA. It was further submitted that it was ready and willing to refund the money paid by the allottees with interest. However, this shows that the respondent recognizes the complainants as allottees in the project known as "BBJ Roma".
9. In view of the aforesaid facts, it appears that the complainants are allottees in the project "BBJ Roma", which has not been registered by the respondent. The money paid by them has been utilised. Hence, the promoter is directed to treat the complainants as allottees in the project ("BBJ Roma" or any other name), which it registers in future as per the sanctioned layout. The complainants are also entitled, if they so desire, to seek refund of their money along with



interest as offered by the respondent/promoter in its submissions at the rate prescribed by RERA, i.e. Marginal Cost of Lending Rate (MCLR) of State Bank of India (SBI) plus 2% from the date of their payment of money to the respondent. The allottees may also approach Slum Rehabilitation Authority (SRA) or its High Power Committee/Apex Grievance Redressal Committee (AGRC) for the redressal of their grievances relating to the sanctioned layout and approved projects therein.

10. With the above observations and directions, all 19 complaints along with applications filed by the respondent for maintainability of these complainants stand disposed of.


(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA

महा-रेरा